

		withdrawal of the motions set for hearing on June 4, 2026. (ROA 243.) Thus, the motions are taken OFF CALENDAR. However, the Court takes note that Plaintiff in pro per served the motion (and the notice of withdrawal) by email on Defendants' counsel's secretary – Monique Kingsbury at mkingsbury@callahan-law.com. That is her email address listed on the proofs of service filed by Defendants. However, that is not the email address of record for Defendants' counsel. Plaintiff should be serving documents on Javier H. Van Oordt at jvo@callahan-law.com. The moving party shall give notice of this ruling.
4	Donaho v. PHH Mortgage Services	Off calendar.
5	AIC Owner, LLC v. Dunchok	Defendant James M. Dunchok moves to set aside the default and default judgment entered against Defendant. For the following reasons, the unopposed motion is GRANTED. Code Civ. Proc. § 473(b) provides in pertinent part, “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . .” A motion seeking relief under Section 473(b) must be brought within 6 months of entry of the judgment. (Civ. Proc. Code § 473(b).) Defendant Dunchok's default was entered on November 4, 2025. (ROA 18.) Default judgment was entered against Dunchok on December 19, 2025. (ROA 22.) Dunchok filed this motion on January 8, 2026, well within 6 months of the default and default judgment. Dunchok seeks discretionary relief based on his claimed mistake, inadvertence, and excusable neglect. On June 11, 2025, Dunchok filed a lawsuit against Plaintiff AIC Owner, LLC and another party, Sarah Tolentino, concerning Dunchok's eviction from the property at issue in this lawsuit. (Orange County Superior Court Case No. 30-2025-01489145-CU-BC-WJC; Dunchok Dec., ¶ 2.) That action is still pending. Plaintiff commenced this action on August 21, 2025 and served Dunchok in late August 2025. (Dunchok Dec., ¶ 3.) Dunchok mistakenly believed that his first response in this matter was due with the January 2026 Case Management Conference. (Ibid.) Dunchok has made a sufficient

	showing of mistake, inadvertence, or excusable neglect to warrant setting aside the default.
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	Dunchok shall file the Proposed Answer to the Complaint with 7 days of this ruling, but Dunchok shall ensure that the formatting of the Answer complies with the Rules of Court. (See, e.g., California Rules of Court Rules 2.100 - 2.119.)
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	Case Management Conference is scheduled for July 23, 2026, at 9:00 a.m. in this department.
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	Dunchok shall give notice of this ruling.
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